

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:

Date Filed:

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EMANUEL CHISLOM, TEMAR BISHOP &
MICHAEL SANDERS.

Plaintiffs,

Plaintiff designates
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where cause of action
arose

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTIAN VILLACIS (Tax# 949772) and
POLICE OFFICERS JOHN DOE 1-5¹.

The plaintiff's reside at:
Kings County, New York

Defendants.

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To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
August 5, 2016

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Law Department
100 Church Street
New York, N.Y. 10007

Police Officer Christian Villacis (Tax# 949772)
67th Police Precinct
2820 Snyder Avenue
Brooklyn, NY 11226

¹ The specific names, tax shield numbers and address for service of process of these officers are presently unknown to the claimants.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.

EMANUEL CHISLOM, TEMAR BISHOP &
MICHAEL SANDERS,

Plaintiffs,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTIAN VILLACIS (Tax# 949772) and
POLICE OFFICERS JOHN DOE 1-5,

Defendants.

-----X

EMANUEL CHISLOM, TEMAR BISHOP & MICHAEL SANDERS (hereinafter
"plaintiffs"), by their attorney(s), THE LAW OFFICES OF WALE MOSAKU, P.C.,
complaining of the defendants THE CITY OF NEW YORK, POLICE OFFICER
CHRISTIAN VILLACIS (Tax# 949772) and POLICE OFFICERS JOHN DOE 1-5
(collectively referred to as "the defendants"), upon information and belief, allege as
follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to the plaintiffs under color of statute, ordinance, regulation, custom: and/or to redress the deprivation of rights, privileges, and immunities secured to the plaintiffs by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and by Title 42 U.S.C. §§ 1982, 1983 and 1985; and arising under the law and statutes of the City and/or State of New York.

THE PARTIES

2. At all times material to this complaint, plaintiffs were, and they still are, residents of the City of New York, who at all times material and relevant to this complaint resided, and still reside, in Kings County, City and State of New York.

3. At all relevant times, defendants POLICE OFFICER CHRISTIAN VILLACIS (Tax# 949772) and POLICE OFFICERS JOHN DOE 1-5 (collectively referred to as "defendant officers"), of the New York City Police Department (hereinafter "NYPD"), upon information and belief, were, and still are, law enforcement officers in the employ of the NYPD.
4. At all times herein, the defendant officers were employed as law enforcement officers of the NYPD, and were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officers, through its Police Department, namely the NYPD, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. The plaintiffs sue all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with: on October 20, 2015, within ninety days after the claims alleged in this complaint arose, a written notice of claim, sworn to by each plaintiff and/or his representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff Tamar Bishop's claim was assigned Claim No. 2015PI030242. Plaintiff Emmanuel Chisolom's claim was assigned

Claim No. 2015PI030243. Plaintiff Michael Sanders' claim was assigned Claim No. 2015PI030244.

8. At least thirty days have elapsed since the service of the above-mentioned notices of claim, and adjustment or payment of the claims have been neglected or refused.
9. This action, pursuant to New York State and City Law, has been commenced within one year and ninety days after the happening of the event upon which the claims are based.

FACTUAL ALLEGATIONS

10. On or about September 7, 2015, at approximately 06:00 a.m., on Utica Avenue, at, within, or close to its intersection with Church Avenue ("subject location") the plaintiffs were unlawfully arrested without probable cause by the defendant officers.
11. That immediately prior to their arrests, the plaintiffs were inside of the plaintiff Emanuel Chislom's vehicle ("subject vehicle"), which at the time was operated by the plaintiff Michael Sanders.
12. That the plaintiff Michael Sanders had parked the subject vehicle by the curb, and the plaintiffs Emanuel Chislom and Temar Bishop had exited the subject vehicle in order to go to a nearby grocery store to purchase some items.
13. That as said plaintiffs exited the subject vehicle, the defendant officers, who were in a vehicle, pulled up to the rear of the subject vehicle, and directed the plaintiffs Emanuel Chislom and Temar Bishop to get back inside of the subject vehicle.
14. That one of the defendant officers then asked for the front license plate of the subject vehicle, and the plaintiff Emanuel Sanders handed it to said defendant officer (the subject vehicle had been involved in an accident approximately one month prior to that date).
15. A defendant officer also asked for the registration of the vehicle, and the plaintiff Emanuel Sanders handed it to said defendant officer.

16. A defendant officer further asked for the driver's license of the plaintiff Michael Sanders, and said plaintiff handed it to said officer.
17. After all of the above-referenced items had been provided upon request, the defendant officers then decided to unlawfully search the occupants of the subject vehicle.
18. At that juncture, another occupant of the subject vehicle, namely Terrence Bishop (the brother of the plaintiff Tamar Bishop), informed the defendant officers that he had a gun in his possession.
19. The defendant officers recovered said weapon from Terrence Bishop, and then arrested everyone else in the subject vehicle, including the plaintiffs, even though the defendant officers did not recover anything illegal from said plaintiffs.
20. The plaintiffs were all taken to the 67th precinct, where they were processed, or otherwise photographed and fingerprinted.
21. At approximately 06:00 p.m. on the same day, the plaintiffs were taken to "Central Booking" situated with the criminal courthouse located at 120 Schermerhorn Street, Brooklyn, New York, where they were again fingerprinted and photographed.
22. At approximately 02:00 a.m. on September 8, 2015, the plaintiffs Emanuel Chislom and Tamar Bishop were released from custody, after the Kings County District Attorney declined to prosecute them.
23. The plaintiff Tamar Bishop's arrest number was "K15668736". The plaintiff Emanuel Chislom's arrest number was "K15668737".
24. However, the plaintiff Michael Sanders was prosecuted, after having been charged by defendant Police Officer Christian Villacis with the offenses of "Unlicensed Motor Vehicle" [VTL 401(1)(A)]; and Unlicensed Operator [VTL 509(1)].
25. Within the criminal complaint that he prepared, defendant Police Officer Christian Villacis falsely stated that the plaintiff Michael Sanders did not provide a driver's license upon his request.

26. The above-referenced charges were a fabrication and completely untrue. As set forth above, said officer had been provided with the registration of the subject vehicle, as well as the driver's license of the plaintiff Michael Sanders.
27. At approximately 04:00 p.m. on 09/08/2015, the plaintiff Michael Sanders was arraigned before a judge in Kings County Criminal Court, at which time the matter was adjourned in contemplation of dismissal (ACD).
28. The plaintiff Michael Sanders' arrest number was "K15668739". The docket number of the criminal court proceeding that was commenced against him is 2015KN058715.

CAUSE OF ACTION ON BEHALF OF THE PLAINTIFFS: UNLAWFUL
SEARCH UNDER 42 U.S.C § 1983

29. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 28 of this complaint as though fully set forth herein.
30. Prior to and following the plaintiffs arrests, the defendants searched and/or caused the plaintiffs and/or his/their property to be searched, without any individualized reasonable suspicion that the plaintiffs were concealing weapons or contraband.
31. As a result of the foregoing, the plaintiffs was/were subjected to illegal and improper searches.
32. The foregoing unlawful search violated each plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

CAUSE(S) OF ACTION ON BEHALF OF THE PLAINTIFFS: FALSE ARREST AND
FALSE IMPRISONMENT UNDER 42 U.S.C § 1983/NEW YORK STATE LAW

33. By this reference, the plaintiffs incorporate each and every allegation and averment set forth in paragraphs 1 through 32 of this complaint as though fully set forth herein.

34. The above-described respective arrest, detention and imprisonment of the plaintiffs by the defendant officers was/were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiffs arrest(s) or subsequent detention(s).
35. As a result of the plaintiffs above-described false arrest(s) and detention(s) by the defendant officers, the plaintiffs have been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know them, were prevented from attending to their necessary affairs, and have been caused to incur legal expenses, and have been otherwise damaged in their character and reputation.
36. Consequently, the plaintiffs have been damaged and hereby demand compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.
37. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
38. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF MICHAEL SANDERS AGAINST THE DEFENDANT POLICE OFFICER CHRISTIAN VILLACIS (Tax# 949772): DENIAL OF A CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO THE FABRICATION OF EVIDENCE

39. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 38 of this complaint as though fully set forth herein.
40. The defendants Police Officer Christian Villacis fabricated evidence and/or created false evidence against the plaintiff Michael Sanders.
41. The defendant Police Officer Christian Villacis forwarded fabricated and false evidence/false information to the prosecutors in the Kings

County District Attorney's office against the plaintiff Michael Sanders.

42. The defendant Police Officer Christian Villacis misrepresented and falsified evidence throughout all phases of the criminal proceeding that was commenced against the plaintiff Michael Sanders.
43. The defendant Police Officer Christian Villacis misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office against the plaintiff Michael Sanders.
44. The defendant Police Officer Christian Villacis withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
45. The defendant Police Officer Christian Villacis did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
46. By creating false evidence against the plaintiff Michael Sanders; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, which directly resulted in the plaintiff Michael Sanders being deprived of his liberty, the defendant Police Officer Christian Villacis violated the plaintiff Michael Sanders constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.
47. As a consequence of the defendant Police Officer Christian Villacis' actions, the plaintiff Michael Sanders suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated.
48. The plaintiff Michael Sanders hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against defendant Police Officer Christian Villacis.

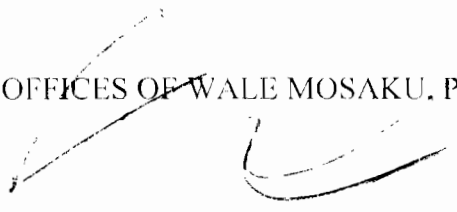
CAUSE OF ACTION ON BEHALF OF ALL PLAINTIFFS: FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

49. By this reference, each plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 48 of this complaint as though fully set forth herein.
50. Each and every individual defendant had an affirmative duty to intervene on each plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
51. The individual defendants failed to intervene on each plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
52. As a consequence of said defendants' actions, each plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his/her constitutional rights were violated. Each plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

WHEREFORE, each plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including each plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
August 5, 2016

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku
Attorney for the Plaintiffs
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Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:
EMANUEL CHISLOM, TEMAR BISHOP &
MICHAEL SANDERS,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTIAN VILLACIS (Tax# 949772) and
POLICE OFFICERS JOHN DOE 1-5,

Defendants.

-----X

The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
August 5, 2016

LAW OFFICES OF WALE MOSAKU, P.C.



BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
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Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

EMANUEL CHISLOM, TEMAR BISHOP & MICHAEL SANDERS,

Plaintiff(s),

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTIAN VILLACIS (Tax# 949772) and
POLICE OFFICERS JOHN DOE 1-5,

Defendant(s).

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorneys for Defendant(s)
